

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RAFAEL CRUZ,

Plaintiff,

-against-

SUMMONS

Jury Trial Demanded

CITY OF NEW YORK; Defendant School Safety Agent KAISHA FELIX, Defendant Police Officer PAOLO RUIZ, Shield No. 15316; Defendant CALDERON, Shield No. 31512; individually and in his/her official capacities; NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown) and New York City Department of Correction Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 17, 2017

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
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TO: ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer Paolo Ruiz, Shield No. 015316
257 Alexander Ave Bronx NY 10454

Police Officer Calderon, Shield #31512
257 Alexander Ave Bronx NY 10454

School Safety Agent Felix
257 Alexander Ave Bronx NY 10454

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Defendants.

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PLAINTIFF Rafael CRUZ, by his attorneys, LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF Rafael CRUZ, is an Hispanic male and has been at all relevant times a resident of Bronx County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants FELIX, CALDERON, RUIZ, NYPD Defendants John & Jane Doe 1 through 10 ("Doe Defendants") were police officers, detectives or supervisors employed by the NYPD; and New York City Department of Correction Officer Defendants John & Jane Doe 1 through 10 ("Doe Defendants") were correction officers, supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of the John & Jane Doe defendants.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

JURY DEMAND

8. PLAINTIFF demands a trial by jury.

STATEMENT OF FACTS

9. On or about March 18, 2014 at or around 9:00 a.m., PLAINTIFF, who was a minor at the time, was lawfully within his residence located at Help USA Bronx Crotona Park North, 775 Crotona Park North Bronx, NY 10460, Bronx, New York.

10. Several unidentified New York City Police Officers, including defendants RUIZ, and the DOE defendants came to PLAINTIFF's residence.

11. The officers lacked a warrant and/or probable cause, but, notwithstanding, they forced claimant to go to the police precinct.

12. At the precinct the officers falsely accused plaintiff of being involved in a burglary that took place inside of a the Academy of Public Relations, a school located at 778 Forest Avenue, Bronx, New York on March 12, 2014.

13. PLAINTIFF repeatedly told the officers that he was at home sleeping during the time of the alleged robbery.

14. In fact, at the time of PLAINTIFF'S arrest, the defendants had in their possession video footage of the burglary suspects.

15. The suspects' faces can be viewed clearly and even to the casual observer it is obvious that plaintiff was not any of the individuals depicted in the video.

16. Notwithstanding, the defendant officers including defendants RUIZ and CALDERON falsely informed employees of the Bronx County District Attorney's Office ("DA's Office") that PLAINTIFF had committed a burglary.

17. Neither RUIZ, CALDERON, nor the DOE defendants observed or otherwise believed that PLAINTIFF had committed any other crimes or offenses.

18. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

19. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/ or continue the criminal prosecution of PLAINTIFF.

20. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendant's claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

21. From the precinct, PLAINTIFF was then transported to Central Booking, and was subsequently arraigned and was remanded to Riker's Island.

22. While incarcerated at Rikers Island on or about April 14, 2014, PLAINTIFF was attacked by a fellow inmate.

23. Defendants John/Jane Doe New York City Department of Correction Officers knew that plaintiff reasonably feared for his safety but they refused to act to prevent any harm to plaintiff.

24. In fact, Defendants John/Jane Doe New York City Department of Correction Officers had every opportunity to intervene and stop the attack but instead they watched and did nothing.

25. The fact that officers failed to protect Plaintiff and then delayed in providing medical treatment caused plaintiff to suffer great pain and serious, permanent, injuries.

26. In fact, plaintiff was taken to Bellevue Hospital where they diagnosed him with a broken jaw and he was forced to undergo surgery.

27. PLAINTIFF remained incarcerated at Rikers Island for approximately fifty-one (51) days

28. PLAINTIFF appeared in court as required, and on December 1, 2014 PLAINTIFF's criminal case was dismissed in its entirety.

29. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

CLAIM ONE
42 U.S.C. § 1983 ("FEDERAL CLAIMS")
DEPRIVATION OF FEDERAL RIGHTS

30. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

31. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

32. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, and the New York City Department of Correction all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM ONE
N.Y. STATE and FEDERAL CLAIMS
FALSE ARREST

36. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

37. As a result of the foregoing false imprisonment, PLAINTIFF's liberty was restricted for an extended period of time, PLAINTIFF was put in fear for PLAINTIFF's safety, was humiliated and subjected to handcuffing and other physical restraints.

38. PLAINTIFF was conscious of said confinement and did not consent to same.

39. The confinement of PLAINTIFF was without probable cause and was not otherwise privileged.

40. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM TWO
STATE AND FEDERAL CLAIMS
MALICIOUS PROSECUTION

41. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

42. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

43. Defendants maliciously commenced criminal proceeding against PLAINTIFF, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

44. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

45. All charges were terminated in PLAINTIFF's favor.

46. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

47. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

CLAIM THREE
FEDERAL CLAIM
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

48. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

49. Defendants created false evidence against PLAINTIFF.

50. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office and/or U.S. Attorney's Office.

51. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

52. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

53. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM FOUR
STATE AND FEDERAL CLAIMS
UNLAWFUL SEARCH AND SEIZURE

54. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

55. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM FIVE
STATE AND FEDERAL CLAIMS
UNLAWFUL ENTRY AND SEARCH

56. PLAINTIFF repeats and re-alleges each and every allegation as if fully set forth herein.

57. Defendants violated the Fourth and Fourteenth Amendments because they unlawfully entered and searched PLAINTIFF's residence without a warrant or other cause to do so. Defendants also unlawfully searched the bodies of PLAINTIFF.

58. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages herein before alleged.

CLAIM SIX
STATE AND FEDERAL CLAIMS
FAILURE TO INTERVENE

59. PLAINTIFF repeats and re-alleges each and every allegation as if fully set forth herein.

60. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

61. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

62. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SEVEN
FEDERAL CLAIM
DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

63. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

64. The individual defendants were aware of a risk to PLAINTIFF's safety and a need for medical care and failed to act in deliberate indifference to PLAINTIFF's needs.

65. Accordingly, defendants violated the fourteenth amendment because they acted with deliberate indifference to PLAINTIFF's medical needs and safety.

66. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

**CLAIM EIGHT
FEDERAL CLAIM
MUNICIPAL LIABILITY**

67. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

68. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

69. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

70. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

71. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

73. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

74. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

75. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and

- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
March 17, 2017

Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for PLAINTIFF Rafael CRUZ in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
March 17, 2017

_____/S/_____
Katherine E. Smith